

Plaintiff appears to argue that the irreparable harm he will suffer is homelessness if he is evicted from his apartment. The possession of the Property, however, is not at issue in this matter. That is the focus of the currently pending unlawful detainer action. As noted by the Federal Court, "Plaintiff will have the opportunity to assert his rights and defenses," including his ADA claims, in that action.

The prayer for relief in the operative First Amended Complaint does not seek any order related to the possession of the Property. Instead, it seeks compensatory damages (§ 125), statutory damages (§ 126), punitive damages (§ 127) and 'injunctive relief' (§ 128). The injunctive relief sought includes: (1) institutional reforms to accommodation policies; (2) fair housing training for all employees; (3) monitoring of civil rights compliance; and (4) remediation of hostile environment.

By way of this complaint, Plaintiff is principally seeking damages and all the claims made therein – if proved – can be fully compensated via an award of damages. Accordingly, Plaintiff has failed to show that he will be irreparably harmed if a preliminary injunction does not issue.

Conclusion

"The power to issue preliminary injunctions is an extraordinary one and should be exercised with great caution and only where it appears that sufficient cause for hasty action exists." (*West*, supra, 186 Cal.App.2d at 565.) They should only be issued when there is a "clear showing that the threatened and impending injury is great, and can be averted only by injunction." (*Western Electroplating Co.*, supra, 172 Cal.App.2d at 283.) The burden is on the moving party to show all elements necessary to support issuance of a preliminary injunction. (*O'Connell*, supra, 141 Cal. 4th at 1481.)

Plaintiff has failed to meet his burden to show that a preliminary injunction should issue. For all the reasons set forth above, Plaintiff's request is **denied**.

13. 9:00 AM CASE NUMBER: MS5031
CASE NAME: PETITION OF: PARAQUAT CASES
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO DAVID J. DICKENS FOR PLTF
RICHARD CLASEN
FILED BY: CLASEN, COLLEEN R.
TENTATIVE RULING:
Granted.

14. 9:00 AM CASE NUMBER: MS5031
CASE NAME: PETITION OF: PARAQUAT CASES
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO STACHIA REUWSAAT FOR DEF
SYNGENTA
FILED BY: SYNGENTA AG
TENTATIVE RULING:
Granted, subject to submission of proof that the application was submitted to the State Bar.

15. 9:00 AM CASE NUMBER: MSC18-00956
CASE NAME: EUBANKS VS YAPSTONE
***HEARING ON MOTION IN RE: RE: COMPLIANCE HEARING**
FILED BY:

TENTATIVE RULING:

The Settlement Administrator's declaration shows that the settlement terms have been implemented. No further proceedings are contemplated.

16. 9:00 AM CASE NUMBER: MSC21-02036

CASE NAME: PEOPLE OF CA VS. CORTEVA INC

***HEARING ON MOTION FOR DISCOVERY COMPEL DEFENDANTS RESPONSES AND PRODUCE DOCUMENTS**

FILED BY: PEOPLE OF THE STATE OF CALIFORNIA EX REL. MEREDITH WILLIAMS, DIRECTOR OF THE CALIFORNIA DEPARTMENT OF TOXIC SUBSTANCES

TENTATIVE RULING:

Plaintiff People of the State of California, ex rel. Katherine M. Butler, Director of the California Department of Toxic Substances Control (DTSC) moves to compel further discovery responses from Defendants Corteva, Inc. Dow Agrosiences, LLC, and Corteva Agriscience, LLA (Corteva) and E.I. du Pont de Nemours and Company (DuPont).

Since the filing of the motion, the scope of the motion has been narrowed somewhat. The motion is withdrawn as to DuPont. As to Corteva, the motion seeks to compel further responses to Form Interrogatory Nos. 12.1 and 15.1; Special Interrogatories Nos. 1, 4, 5, 7-10, 12-15, 18, 20, 24-34, and Requests for Production of documents Nos. 1-5, 7, 9, 12-50, and 54, and to comply with previous agreements to produce documents in response to requests Nos. 10, 11, 13, 48, 49, and 53, and provide a privilege log. Corteva has agreed to supplement its responses, specifically Form Interrogatories number 12.1 and 15.1, while withdrawing its 8th, 17th, 18th, 24th, and 25th affirmative defenses. It will supplement its responses to Special Interrogatory No. 7, and produce the Site Water Balance document referred to in response to Special Interrogatories No. 12-14, 18, 20, 24, and 26. Corteva would produce amended responses within 30 days of the hearing on the motion. (DTSC wants the supplemental responses by January 13, 2026.)

As a general matter, Corteva argues that the scope of DTSC's discovery requests are beyond the scope of the "limited" issues in the case. This is not apparent to the Court, especially given the broad scope of discovery permitted by Code of Civil Procedure section 2017.010.

Corteva objects to some of the discovery (Requests for Production Nos. 1-5, 7, 9, 10, 13-50, and 54) on the ground that responses were provided in response to discovery requests from intervenor Communities for a Better Environment (CBE). While this may be a reason why counsel, in the interest of efficiency, might agree to avoid duplicative discovery, it is not a valid objection to the requests. Assuming, however, that the documents were produced electronically, the burden on Corteva of producing additional electronic copies of the documents in question is not great. Moreover, DTSC contends that there is only some overlap with the CBE discovery and that the responses to the CBE discovery were not adequate.

The Court notes that to the extent Corteva argues that it does not have some of the documents requested, this may be the basis for a response of "inability to comply" in compliance with Code of Civil Procedure section 2031.230, which enables the responding party to state that, "a diligent search